

Digielves Tech Wizards Pvt. Ltd.

tech mantras

To,

Mr./Ms. [Data Missing] [Data Missing],

Dear **[Data Missing],**

We are delighted to extend our warmest welcome to you as the newest member of Our Company. We are confident that your skills and experience as a **Employee** will contribute significantly to our creative team and the overall success of our projects.

Your strong background in both front-end and back-end development, along with your expertise in web applications, truly impressed us during the interview. We're excited to have you on board!

In your role, you'll be collaborating with cross-functional teams and clients, developing and maintaining scalable web applications, and contributing to the implementation and training of our software solutions. Additionally, you'll be involved in initiatives that drive innovation and support our brand and business objectives.

Joining Our Company means becoming part of a dynamic and inclusive work culture that values creativity, collaboration, and continuous learning.

Position: Employee

Start Date: TBD

Reporting to: N/A

As part of our commitment to your professional development, we encourage you to actively participate in team meetings, training sessions, and other opportunities for skill enhancement.

Once again, welcome to Our Company. We are thrilled to have you as part of our team and look forward to a successful and rewarding journey together.

Yours sincerely,

For Our Company

Managing Director

DIGIELVES TECH WIZARDS PVT. LTD.

www.digielves.com | +91 85911 89001 | info@digielves.com | Pune, Maharashtra, India

Annexure I

OFFER LETTER AND EMPLOYMENT AGREEMENT

We are pleased to offer you employment with Our Company ("The Company") on the following terms and conditions:

1. **Commencement of Employment:** TBD
2. **Designation:** Employee
3. **Reporting Supervisor:** N/A
4. **Compensation & Benefits:** As per Annexure II
5. **Probation Period:** You will be on a probation period of 3 months. During this time, your performance will be regularly reviewed, and based on successful completion, your employment will be confirmed.
6. **Place of posting, transfer & Secondment:**
You will be posted at Custom site, however, you could be transferred to another location or seconded to any other entity upon the Company's requirements. At such time, you will be notified of terms specific to such transfer and / or secondment, including those related to compensation.
7. **Hours of Work:**
All the employees are required to work for such a period of time as it is necessary for the proper discharge of the duties to the company. The normal working hours are Mon-Sat 10:00 Am to 8:00 pm.

Important Guidelines:

1. **Work from Home Policy:** Work from home is not permitted unless explicitly approved by management in rare and exceptional circumstances. Currently, the management has not authorized any remote work arrangements.
2. **Leave Policy:** All leave must be pre-approved and planned in advance. Emergency or medical leave: Employees must provide valid supporting documents for unplanned absences. Unapproved absences or failure to provide documentation in emergency cases will be considered unplanned leave and will result in a salary deduction of Extra Rs. 750/- per day.

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3. **Punctuality Requirement:** Standard office reporting time is 10:00 AM. Any arrival after 10:00 AM will be considered a late mark, and Rs. 100/- will be deducted for each instance.
8. **Nature of Duties:** The employee shall perform, to the best of the ability, all the duties as are inherent in their posting & such additional duties as the Company may call upon them to perform, from time to time.
9. **Full Time Commitment:** During the employment with the Company, all the employees are expected to devote their whole time, attention & skills to further the Company's interests. Employees shall not directly, or indirectly engage or associate themselves with, or be connected with, concerned, employed or engaged in any other business or activities or any other post or work part time, without the prior written permission of the Company. In case any employee wants to pursue any course, he should provide prior written intimation to the company & take necessary approvals.

Company Property:

1. The employee shall always maintain in good condition the Company property, which may be entrusted to them for official use during the course of their employment and shall return all such property to the company prior to relinquishment of their charge, failing which the cost of the same will be recovered from them by the company.
2. The employee shall be responsible for all such items or property and shall immediately report loss of property, if any, in their possession to the local police authority as well as to the Company for lodging a claim with the insurance company. In case otherwise, the Company may recover the same from them depending upon the severity of the loss incurred.
11. **Borrowings / Accepting Gifts:** The employee shall not borrow or accept any money, gift, reward or compensation for their personal gains from otherwise place themselves under pecuniary obligation to any person / client with whom they might be having official dealings.

Resignation / Termination:

1. The Company reserves the right to terminate any employee by providing adequate notice period of Two full calendar month or Two-month salary in lieu thereof. The termination may happen with or without any cause as deemed fair and justified at the sole discretion of the management. For the purpose of this clause salary shall mean gross salary.
2. Any employee can start the process of severing the relationship with the Company by providing a notice period of Two months or Two-month salary in lieu thereof. For this clause, salary will mean gross salary.

3. The Company reserves the right to terminate the employment of any employee summarily without any notice period or termination payment, if it has reasonable grounds to believe that an employee is guilty of misconduct or negligence, or have committed any breach of this agreement or caused any loss to the Company at the sole discretion of the management. In addition to the right to terminate an employee's employment, the Company shall also be entitled to injunctive relief against him / her if deemed fit. Any such employee shall be liable to the Company for all damages, cost, including court cost & reasonable attorney fee incurred by the Company.
4. On the termination of the employment of any employee for whatsoever reason, He / She will be bound to return to the Company all the property; documents and papers, both original and copies thereof, including any literature, contracts, records, customer lists, drawings, blue prints, letters, notes, data, computer programs, reports, manuals, correspondence and the like; and confidential information (as defined below), in his / her possession or under his/her control relating to his employment or to the Client's business affairs.

Confidential Information:

1. "Confidential information" means information about the business of the Company, its Affiliates (as defined below) or business partners and that of their customers which is not available to the general public and which may be learnt by the employee in course of, or in relation to his / her employment. This includes but is not limited to, information relating to the organization, its customer lists, employment policies, personnel and information about the products, processes including ideas, concepts, projections, technology, manuals, drawings, designs, specifications and all papers, resumes records and other documents containing such confidential information.
2. The term Affiliate in this agreement shall mean any entity or person controlling or controlled by or under common control with such party, where "Control" means the power of such party to direct or influence the management or policies of such entity or person, directly or indirectly, whether through the ownership of voting shares or securities by contract by the right or power (and / or the actual exercise of such right or power) to appoint or to nominate the majority of board of directors or the governing body thereof, or otherwise howsoever controlling such entity or person (Affiliate)
3. The employee must always maintain the highest degree of confidentiality and keep as confidential the records, documents and other confidential information relating to the business of the disclosure which might be known to them or confided in them by any means and they are expected to use such records, documents and information only in duly authorized manner in the interest of the disclosure of such information.

4. The employees shall not use confidential information for purpose other than the reason for which it has been disclosed to them.
5. At no time, will the employee remove any confidential information from the office without prior permission.
6. It's the duty of the employee to safeguard and not disclose confidential information and such duty will survive the expiration or termination of their employment with the Company.

Security:

1. Employee shall use any of the Company's computer systems and shall limit access and use it solely for the purpose of performing their duties and shall not access or attempt to access any computer systems, networks, files, software or services other than those required for performance of their duties.
2. The employee shall strictly follow all the Company's security rules and procedures for restricting access the Company's computer systems.
3. All user identification numbers and passwords disclosed to the employees and any information obtained by them as a result of their access to and use of Company's computer systems and networks shall be deemed to be, and treated as, the confidential information under this agreement.
4. The employees should cooperate in the investigation of any apparent unauthorized access to any of the Company's computer systems and / or network.

Non-Solicitation:

1. During the course of the employment with the Company and for a period of two (2) years thereafter, the employees should not (other than in relation to the employment with the Company and for the benefit of the Company)
 - Directly or indirectly solicit business of any customers who has traded or dealt with the company regardless of the location of such customer with respect to technologies, services, products, trade secrets or any other matter in which the Company is active.
 - Directly or indirectly solicit employment with any direct or indirect customer to whom they have provided services on behalf of the Company.
 - Directly or indirectly induce any other employee, employees and/or consultants of the Company to leave their employment engagement with the Company in order to accept association of any kind with any other individual, firm, partnership or corporation.

16. Non-Compete:

The employee should not during the period of their employment with the Company and for 6 (Six) months after separation from the Company on termination of their employment either on their own behalf or on behalf of any third party, except on behalf of the Company, directly or indirectly whether for profit or otherwise, as an individual proprietor, partner, shareholder officer, employed, director, investor, lender or in any other capacity whatsoever, engage in any business that competes with the current or future business of the Company, its subsidiaries, or its Affiliates, or is based on technology of the kind or type acquired, developed or being developed, produced, marketed, distributed, planned, furnished or sold by the Company or its Affiliates or accept employment with any entity that engages in any such business activity.

17. Notices:

Notices may be given by the employee to the Company at its registered office address. Notices may be given by the Company to them at the address intimated by them in the office records.

18. Applicability of Company policy:

The Company shall be entitled to make policy declaration from time to time pertaining matters like leave entitlement, employees benefits, working hours, transfer policies and may alter the same from time to time, at its sole discretion. All such policy decisions of the Company as mentioned above, but not limited to, shall be binding on all employees and shall override this Agreement to that extent.

19. Other Agreements:

As and when required by the Company's clients or other interests, the Company may be obliged to procure the employees (as its employee) to sign certain agreements relating to confidentiality, intellectual property, non-disclosure and other restrictions. The employee is expected to agree to sign such agreements in the best interests of the Company.

20. Severability:

If for any reason, any part of this agreement is held invalid by a Court of law, or any other dispute resolution mechanism, this agreement shall be interpreted as broadly as possible to give effect to the rest of the Agreement (including the invalid part, to the extent possible to achieve the legally achievable objective in the language of the Agreement).

21. Variable Compensation:

At appropriate time, the management is likely to come with performance incentive / Bonus policy. When introduced, in addition to your base salary, you will be eligible to receive an annual discretionary incentive above your base salary. Any incentive / bonus paid will be at the discretion of the Board of Directors. The bonus will be contingent to the Company's overall performance and your personal goals being met. Specific

individual goals will be set in 45 days of your employment signed by any director. The company reserves its right to amend or withdraw the bonus / incentives, at its absolute discretion.

22. Intellectual Property:

Any intellectual property created during the course of your employment shall be the exclusive property of the company, and you are not entitled to use to redevelop the same or hold any claim of the same.

23. Acceptance of our offer:

The above expressed terms are between you and Our Company, a company incorporated under the Companies Act 1956. Please confirm your acceptance of this letter of offer and Employment Agreement by signing and returning the duplicate copy for our attention.

We welcome you and look forward to receiving your acceptance and to working with you.

Yours Sincerely,
For Our Company

Managing Director

Annexure II

EMPLOYEE LETTER OF SALARY STRUCTURE

The following table gives a break of the fixed Salary Component:

Salary Component	Monthly Salary (INR)	Annual Salary (INR)
Basic Salary	[Data Missing]	[Data Missing]
HRA	0.00	0.00
Special Allowance	[Data Missing]	[Data Missing]
Total Fixed CTC	[Data Missing]	[Data Missing]
Deductions		
Professional Tax	0.00	0.00
Net Payable	[Data Missing]	[Data Missing]

- Skills shown in the projects
- Projects and Task completion on time
- New Skill learned and new Initiative in projects

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- Other parameters which your role may require

You need to forward the following documents self-attested prior to your joining:

1. Relevant copies of Academic / Professional attainments and work experience.
2. Documentary evidence of Date of birth, No dues certificate and Relieving letter from the last employer.
3. Two passport sized color photographs.

Yours Sincerely,
For Our Company

Managing Director

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